

		methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.” (Code Civ. Proc., § 413.30, subd. (a)(2).) See declarations of plaintiff Kim, process server Hernandez and investigator Candias. Plaintiffs may serve the summons and amended complaint, along with a copy of this order, on the California Secretary of State. Service shall be completed within 30 days after delivery to the Secretary of State. Ca. Corp. Code section 17701.16. The Court finds this motion (ROA 63) and the one set for May 29, 2026, (ROA 66) are virtually IDENTICAL. Based on the ruling on this motion (ROA 63), the Court now takes the motion set on May 29, 2026, (ROA 66) OFF CALENDAR. The Case Management Conference is CONTINUED to December 17, 2026, at 9:30 a.m. in Department C12. Clerk to give notice.
8.	Velocity Investments, LLC vs. Villegas 24-01433786	1. Motion to Quash (Service of Summons) 2. Case Management Conference Defendant Frank Villegas’s Motion to Quash Service of Summons and the Case Management Conference were both CONTINUED to August 7, 2026, at 9:30 a.m. in Department C12.
9.	M&Y Personal Injury Lawyers vs. Solution Law APC 25-01517436	1. Motion for Judgment on the Pleadings 2. Case Management Conference Defendant Solution Law, APC’s motion for judgment on the pleadings is DENIED. (Code Civ. Proc., § 438 [authorizing motion].) <u>1st cause of action: common counts.</u> This cause of action states sufficient facts to allege a common count for money had and received. (<i>Farmers Ins. Exchange v. Zerín</i> (1997) 53 Cal.App.4th 445, 460 [“A cause of action for money had and received is stated if it is alleged the defendant ‘is indebted to the plaintiff in a certain sum ‘for money had and received by the defendant for the use of the plaintiff’”]; <i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38-39 [complaint is good against a general demurrer so long as the essential facts of some valid cause of action are alleged]; Complaint, ¶¶ 5-8 [plaintiff’s

alleged entitlement to some portion of settlement funds], 11 [moving party's receipt of funds]; Exs. A and B to Complaint, §§ 3 [contingency fee agreement], 4 [client's agreement to pay contingency fee], 6 [lien on "the proceeds of any award, verdict, recovery, and/or settlement"]; see also *Utility Audit Co., Inc. v. City of Los Angeles* (2003) 112 Cal.App.4th 950, 958 ["A claim for money had and received can be based upon money paid by mistake, money paid pursuant to a void contract, or a performance by one party of an express contract"].)

2nd cause of action: breach of fiduciary duty.

This cause of action states sufficient facts. (*LaMonte v. Sanwa Bank California* (1996) 45 Cal.App.4th 509, 517 [elements]; *Johnstone v. State Bar* (1966) 64 Cal.2d 153, 155-156 ["When an attorney receives money on behalf of a third party who is not his client, he nevertheless is a fiduciary as to such third party ... the funds in his possession are impressed with a trust, and his conversion of such funds is a breach of the trust"]; Complaint, ¶¶ 5-8 [plaintiff's alleged entitlement to portion of settlement funds], 11 [moving party's receipt of funds, creating duty], 18 [breach], 19-20 [proximately caused damages].)

3rd cause of action: breach of contract.

This cause of action is not alleged against this moving party.

4th cause of action: declaratory judgment.

This cause of action states sufficient facts. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2002) 82 Cal.App.4th 592, 605; Complaint, ¶¶ 5-8 [plaintiff's alleged entitlement to portion of settlement funds], 11 [moving party's receipt of funds], 29-30 [seeking declaratory relief as to "the amounts due and owing to M&Y" and moving party's duties as successor counsel].)

Plaintiff's counsel has represented to the Court that Motions to Dismiss will be forthcoming as to Defendants Dania Soto-Beltran and Kirsten Worrells.

Based on that representation, the Court now VACATES the Case Management Conference and this matter is scheduled for a Jury Trial on August 13, 2027, at 11:00 a.m. in Department C12. Jury fees are to be paid within 5 days. If jury fees are not timely paid, the jury trial will be converted to a COURT trial.

Plaintiff shall give notice.